

law

MBA · meerut university
Based on 4 year(s) of previous papers

Topic Priority Overview

Topic	Priority	Confidence	Freq	Marks
Caveat Emptor: meaning and exceptions	High	High	2×	3-15 marks
Negotiation vs Assignment (difference)	Low	Low	1×	3 marks
Bailment: definition & essential elements	High	High	3×	15 marks (long answer) / 3 marks (short variant)
Contingent Contract: enforcement rules	High	High	3×	15 marks (detailed) / 3 marks (short)
Condition vs Warranty; Implied Conditions in Sale of Goods	High	High	3×	15 marks
Limited Liability Partnership: eligibility and relationship of partners	High	High	4×	15-22.5 marks (long answer) / 3 marks (short)
Cheque: definition and difference from Bill of Exchange	High	High	3×	3 marks / 15 marks when expanded
Definition of Law & Indian Contract Act (scope/ adequacy)	Medium	High	2×	3 marks / 15 marks (essay on adequacy)
Contract of Guarantee	Medium	High	1×	3 marks
Rights of Finder of Goods	Medium	High	1×	7.5 marks (short answer)
Contract of Sale: definition	Medium	High	1×	7.5 marks (short answer)
Essentials of a Valid Contract	High	High	2×	15-22.5 marks
Pledge: definition and difference from Bailment	Medium	High	1×	15 marks (short/ detailed) / 3 marks (definition)
Holder in Due Course: rights	Medium	High	1×	7.5-15 marks
Limited Liability Partnership: characteristics and incorporation procedure	Medium	High	1×	15 marks
Breach of Contract: remedies	Medium	High	1×	15 marks
Revocation of Acceptance: time limits	Medium	High	1×	7.5-22.5 marks
Contract of Indemnity: features	Medium	High	1×	7.5-22.5 marks

Detailed Study Notes

Read these notes carefully — they're based on actual patterns found in your past papers.

1. Caveat Emptor: meaning and exceptions

High Conf.

High Priority

Appeared in: Paper 1 · Paper 3 · 2× total

Question types: Short: 2

Kya Padhna Hai:

- Definition: "What do you understand by 'Caveat Emptor'?"
- List and explain the specific exceptions mentioned in the question wording: "exceptions to this principle"
- Situations where caveat emptor does not apply (as implied by exception prompts in papers)
- Contrast with seller's duty of disclosure where exceptions apply

Kaise Poochha Jaata Hai:

Mostly short 3-mark direct definition + 'Explain the exceptions' style in 75-word answers.

Repeat Pattern:

Same phrasing 'What do you understand by Caveat Emptor? Explain the exceptions' appeared in Paper 1 and Paper 3 — very consistent.

Key Terms:

Caveat Emptor

exceptions

seller's duty

2. Bailment: definition & essential elements

High Conf.

High Priority

Appeared in: Paper 1 · Paper 3 · Paper 4 · 3× total

Question types: Long: 2 | Case Study: Possible

Kya Padhna Hai:

- Precise statutory definition of Bailment.
- Essential elements (delivery of goods, possession, purpose, return/handling) as expected in a long-answer.
- Distinguish bailment from pledge (different purpose and rights) where asked.
- Practical examples and common case-law points used in answers.

Kaise Poochha Jaata Hai:

Long-answer prompt: "Define Bailment and discuss the essential elements of a contract of Bailment." Expect a structured definition + enumerated elements and brief explanation.

Repeat Pattern:

Appears as a full 15-mark long question in Paper 1 and Paper 4, and is a major topic across years.

Key Terms:

Bailment

delivery

possession

return

3. Contingent Contract: enforcement rules

High Conf.

High Priority

Appeared in: Paper 1 · Paper 3 · 3× total

Question types: Long: 2 | Case Study: Possible

Kya Padhna Hai:

- Definition of contingent contract under the Act.
- Rules regarding enforcement (when contingency becomes impossible, when event happens, when event is within promisor's control, etc.).
- Illustrative examples and exceptions to enforcement.
- Relevant sections and leading illustrations to cite in long answers.

Kaise Poochha Jaata Hai:

Direct long question: "What do you mean by 'Contingent Contract'? Explain the rules regarding Enforcement of Contingent Contracts."

Repeat Pattern:

Identical long-question phrasing found in Paper 1 and Paper 3; prepare rule-list style answer.

Key Terms:

Contingent contract

enforcement

impossibility

event

promisor's control

4. Condition vs Warranty; Implied Conditions in Sale of Goods

High Conf.

High Priority

Appeared in: Paper 1 · Paper 3 · 3× total

Question types: Long: 2 | Case Study: Possible

Kya Padhna Hai:

- Definitions of 'condition' and 'warranty' under the Sale of Goods Act.
- Key legal distinctions: remedies available for breach (repudiation vs damages).
- Typical implied conditions in sale of goods (title, correspondence with description, fitness, merchantability) as expected in answers.
- Use of leading cases and statutory sections for support.

Kaise Poochha Jaata Hai:

Long-answer: "Distinguish between 'condition' and 'warranty.' What are the implied conditions in a Contract of sale of goods?" Expect comparison table + list of implied conditions.

Repeat Pattern:

Same distinction + implied conditions question appears in Papers 1 and 3 (detailed long-answer).

Key Terms:

condition

warranty

implied conditions

sale of goods

remedies

5. Limited Liability Partnership: eligibility and relationship of partners

High Conf.

High Priority

Appeared in: Paper 1 · Paper 2 · Paper 3 · Paper 4 · 4× total

Question types: Short: 3 | Long: 4 | Case Study: Possible

Kya Padhna Hai:

- Definition of LLP and statutory framework.
- Eligibility criteria to be a partner (individuals, bodies corporate, restrictions if any) as asked in multiple papers.
- Nature of relationship of partners: mutual rights, duties, limited liability aspects and internal agreements.
- Incorporation procedure and characteristics when separately asked (Paper 3 asks characteristics/incorporation).

Kaise Poochha Jaata Hai:

Questions ask either for definition + eligibility + relationship or characteristics/incorporation. Prepare both short definition and full incorporation steps/characteristics for long-answer variants.

Repeat Pattern:

Appears in all four papers; sometimes as a short 3-mark, often as a full 15/22.5-mark essay.

Key Terms:

Limited Liability Partnership

eligibility

relationship of partners

incorporation

characteristics

6. Cheque: definition and difference from Bill of Exchange

High Conf.

High Priority

Appeared in: Paper 1 · Paper 3 · 3× total

Question types: Short: 2 | Long: 1 | Case Study: Possible

Kya Padhna Hai:

- Definition of 'Cheque' and statutory definition of 'Bill of Exchange'.
- Key differences (drawer/payee/drawee distinctions, payable on demand, negotiability, crossing, presumption, timeframe etc.).
- Typical examples and important case distinctions to cite.

Kaise Poochha Jaata Hai:

Short direct question: "Define 'Cheque'. Differentiate it from 'Bill of Exchange.'" Expect definition + pointwise differences within 75 words.

Repeat Pattern:

Exact phrasing in Paper 1 and Paper 3; frequent short-answer topic.

Key Terms:

cheque

bill of exchange

demand

drawer

drawee

payee

7. Essentials of a Valid Contract

High Conf.

High Priority

Appeared in: Paper 2 · Paper 4 · 2× total

Question types: Short: 1 | Long: 2 | Case Study: Possible

Kya Padhna Hai:

- Offer and acceptance, free consent, capacity to contract, lawful consideration, lawful object, certainty, possibility of performance.
- Understand illustrations where these essentials are missing.
- Remedies and effects when essentials are absent (void, voidable, unenforceable).

Kaise Poochha Jaata Hai:

Both direct 'What is a contract? Explain the essentials of a valid contract.' and evaluative long versions appear (Paper 2 and Paper 4).

Repeat Pattern:

Core long-answer topic in Paper 2 (detailed) and Paper 4 (essay).

Key Terms:

offer

acceptance

free consent

consideration

capacity

8. Definition of Law & Indian Contract Act (scope/adequacy)

High Conf.

Medium Priority

Appeared in: Paper 2 · 2× total

Question types: Short: 1 | Long: 1

Kya Padhna Hai:

- General definition of Law (purpose/functions).
- Basics of the Indian Contract Act: scope, major provisions and structure.
- Critiques asked by "Is this Act Adequate?" — be ready with advantages, limitations and suggested reforms.

Kaise Poochha Jaata Hai:

Two variants: (1) simple definition 'What is law?' or 'What do you understand by Indian Contract Act?' and (2) evaluative 'Is this Act Adequate?' in long-answer form.

Repeat Pattern:

Short definition + an evaluative long question on adequacy appears in Paper 2.

Key Terms:

law

Indian Contract Act

scope

adequacy

9. Contract of Guarantee

High Conf.

Medium Priority

Appeared in: Paper 2 · 1× total

Question types: Short: 1 | Case Study: Possible

Kya Padhna Hai:

- Definition and parties (surety, principal debtor, creditor).
- Nature of liability of surety, rights of surety and variations affecting guarantee.
- Distinguish guarantee from indemnity, and include short examples.

Kaise Poochha Jaata Hai:

Short 3-mark direct definition: "What is contract of Guarantee?" Expect concise definition with parties.

Repeat Pattern:

Appears as a short-definition question in Paper 2.

Key Terms:

contract of guarantee

surety

principal debtor

creditor

10. Rights of Finder of Goods

High Conf.

Medium Priority

Appeared in: Paper 2 · 1× total

Question types: Short: 1 | Case Study: Possible

Kya Padhna Hai:

- Legal definition of finder and statutory/common-law rights (duty to take care, right to remuneration, right to retain until reward, obligations to return to true owner).
- Distinction between finder as bailee vs trespasser.
- Provide short examples for likely 200-word answers.

Kaise Poochha Jaata Hai:

Short-answer prompt: "What are the rights of finder of goods?" Expect enumerated rights with brief explanation.

Repeat Pattern:

Appears as a 7.5-mark short question in Paper 2 (Section-B).

Key Terms:

finder of goods

rights

duty of care

remuneration

return

11. Contract of Sale: definition

High Conf.

Medium Priority

Appeared in: Paper 2 · 1× total

Question types: Short: 1 | Case Study: Possible

Kya Padhna Hai:

- Statutory definition of 'contract of sale' under Sale of Goods Act.
- Difference between sale and agreement to sell.
- Components: goods, price, transfer of ownership and implications.

Kaise Poochha Jaata Hai:

Short-answer question: "What is contract of sale?" Expect definition plus brief clarifying points.

Repeat Pattern:

Short-definition style appears in Paper 2's Section-B.

Key Terms:

contract of sale

goods

price

transfer of ownership

agreement to sell

12. Pledge: definition and difference from Bailment

High Conf.

Medium Priority

Appeared in: Paper 2 · 1× total

Question types: Short: 1 | Long: 1 | Case Study: Possible

Kya Padhna Hai:

- Definition of pledge and its requisites.
- Contrast with bailment: purpose (security), rights of pawnee, right of sale on default, difference in remedies.
- Cite statutory provisions and typical factual examples.

Kaise Poochha Jaata Hai:

Question: "Define pledge. How does it differ from bailment?" Expect definition + comparative points.

Repeat Pattern:

Appears as direct comparative question in Paper 2.

Key Terms:

pledge

pawnee

bailment

security

right of sale

13. Holder in Due Course: rights

High Conf.

Medium Priority

Appeared in: Paper 2 · 1× total

Question types: Short: 1 | Long: Possible | Case Study: Possible

Kya Padhna Hai:

- Definition of holder in due course and conditions for attaining that status.
- Rights of holder in due course (free from defects in title, defenses available to prior parties not available against him, etc.).
- Exceptions and practical examples involving negotiable instruments.

Kaise Poochha Jaata Hai:

Short/medium question: "What are the rights of a holder in due course of negotiable instrument?" Expect enumerated rights and a brief explanation.

Repeat Pattern:

Short-answer topic in Paper 2's Section-C.

Key Terms:

holder in due course

rights

negotiable instrument

defenses

14. Limited Liability Partnership:

High Conf.

Medium Priority

characteristics and incorporation procedure

Appeared in: Paper 3 · 1× total

Question types: Short: 1 | Long: 1

Kya Padhna Hai:

- Key characteristics of LLP (separate legal entity, limited liability, flexible internal structure).
- Stepwise incorporation procedure (application, LLP agreement, registration formalities) as expected in Paper 3.
- Differences from partnership and company to highlight in answers.

Kaise Poochha Jaata Hai:

Long-answer in Paper 3: "Describe the procedure for incorporation of a 'Limited Liability Partnership'." Provide stepwise procedure with statutory references.

Repeat Pattern:

Paper 3 specifically asks characteristics and incorporation procedure; prepare both.

Key Terms:

LLP

characteristics

incorporation

registration

15. Breach of Contract: remedies

High Conf.

Medium Priority

Appeared in: Paper 3 · 1× total

Question types: Long: 1 | Case Study: Possible

Kya Padhna Hai:

- Definition of breach of contract and classification (actual, anticipatory).
- Remedies: damages (compensatory, nominal, punitive when applicable), specific performance, injunction, rescission, restitution.
- Calculation principles for damages and case-law examples for major remedies.

Kaise Poochha Jaata Hai:

Long-question: "What is meant by 'breach of contract'? What are the remedies against breach of contract? Explain those." Expect definition + detailed remedies with illustrations.

Repeat Pattern:

Appears as a full long-answer in Paper 3.

Key Terms:

breach of contract

remedies

damages

specific performance

rescission

16. Revocation of Acceptance: time limits

High Conf.

Medium Priority

Appeared in: Paper 4 · 1× total

Question types: Long: 2 | Case Study: Possible

Kya Padhna Hai:

- Law on acceptance and revocation: when acceptance can be revoked and procedural/time limits.
- Case-law or statutory guidance on whether acceptance can be withdrawn after communication or after a certain time.
- Practical examples distinguishing revocable and irrevocable acceptances.

Kaise Poochha Jaata Hai:

Essay-style question: "How can an acceptance be revoked? Is there any limit of time after which an acceptance cannot be revoked?" Expect stepwise legal explanation.

Repeat Pattern:

Appears in both short and long forms in Paper 4 (Sections B and C).

Key Terms:

acceptance

revocation

time limits

communication

17. Contract of Indemnity: features

High Conf.

Medium Priority

Appeared in: Paper 4 · 1× total

Question types: Short: 1 | Long: 1 | Case Study: Possible

Kya Padhna Hai:

- Definition and essential features of contract of indemnity (indemnifier, indemnity holder, nature of liability).
- Rights of indemnity holder, including right to recover losses.
- Distinction between indemnity and guarantee where relevant.

Kaise Poochha Jaata Hai:

Short/long question: "What is Contract of Indemnity? What are its important features?" Expect definition plus enumerated features and brief explanation.

Repeat Pattern:

Appears as a Section-B short question in Paper 4; may be expanded into a long essay.

Key Terms:

indemnity

indemnifier

indemnity holder

liability

features

18. Negotiation vs Assignment (difference)

Low Conf.

Low Priority

Appeared in: Paper 1 · 1× total

Question types: Short: 1

Kya Padhna Hai:

- Definition: "What is meant by Negotiation?"
- Pointwise differences asked: "How is it different from Assignment?"
- Parties/transfer mechanics implied by negotiation and assignment
- Legal effect on negotiable instruments vs assignment of contractual rights

Kaise Poochha Jaata Hai:

Short-answer compare-and-contrast: definition followed by differences in bullet/para form.

Repeat Pattern:

Appeared only in Paper 1 as a single short comparative question; not repeated elsewhere.

Apni Strategy Chuno

Pick your goal — here's exactly which topics to study based on past paper patterns.

□ **Bas Pass Hona Hai**

Just want to pass — 7 of 18 topics · ~63% marks coverage

1. Limited Liability Partnership: eligibility and relationship of partners
2. Bailment: definition & essential elements
3. Contingent Contract: enforcement rules
4. Condition vs Warranty; Implied Conditions in Sale of Goods
5. Cheque: definition and difference from Bill of Exchange
6. Caveat Emptor: meaning and exceptions
7. Essentials of a Valid Contract

□ **Average Score Chahiye**

Decent score — 17 of 18 topics · ~97% marks coverage

1. Limited Liability Partnership: eligibility and relationship of partners
2. Bailment: definition & essential elements
3. Contingent Contract: enforcement rules
4. Condition vs Warranty; Implied Conditions in Sale of Goods
5. Cheque: definition and difference from Bill of Exchange
6. Caveat Emptor: meaning and exceptions
7. Essentials of a Valid Contract
8. Definition of Law & Indian Contract Act (scope/adequacy)
9. Contract of Guarantee
10. Rights of Finder of Goods
11. Contract of Sale: definition
12. Pledge: definition and difference from Bailment
13. Holder in Due Course: rights
14. Limited Liability Partnership: characteristics and incorporation procedure
15. Breach of Contract: remedies
16. Revocation of Acceptance: time limits
17. Contract of Indemnity: features

☐ Top Karna Hai

Full coverage — all 18 topics · 100% marks coverage

1. Limited Liability Partnership: eligibility and relationship of partners
2. Bailment: definition & essential elements
3. Contingent Contract: enforcement rules
4. Condition vs Warranty; Implied Conditions in Sale of Goods
5. Cheque: definition and difference from Bill of Exchange
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13. Holder in Due Course: rights
14. Limited Liability Partnership: characteristics and incorporation procedure
15. Breach of Contract: remedies
16. Revocation of Acceptance: time limits
17. Contract of Indemnity: features
18. Negotiation vs Assignment (difference)

Overall Exam Strategy

Bas Pass Hona Hai: Caveat Emptor: meaning and exceptions, Negotiation vs Assignment (difference), Bailment: definition & essential elements, Contingent Contract: enforcement rules, Condition vs Warranty; Implied Conditions in Sale of Goods, Limited Liability Partnership: eligibility and relationship of partners ko pehle prepare karo, kyunki ye uploaded papers se nikle hue priority topics hain.